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made case-specific sovereign-immunity determinations to which courts have deferred. And exercise by Congress and the President of control over claims against foreign governments, as well as foreign-government-owned property in the United States, is hardly a novelty. In accord with the courts below, we perceive in § 8772 no violation of separation-of-powers principles, and no threat to the independence of the Judiciary.

I

A

We set out here statutory provisions relevant to this case. American nationals may file suit against state sponsors of terrorism in the courts of the United States. See 28 U. S. C. § 1605A. Specifically, they may seek “money damages . . . against a foreign state for personal injury or death that was caused by” acts of terrorism, including “torture, extrajudicial killing, aircraft sabotage, hostage taking, or the provision of material support” to terrorist activities. § 1605A(a)(1). This authorization—known as the “terrorism exception”—is among enumerated exceptions prescribed in the Foreign Sovereign Immunities Act of 1976 (FSIA) to the general rule of sovereign immunity.¹

Victims of state-sponsored terrorism, like others proceeding under an FSIA exception, may obtain a judgment against a foreign state on “establish[ing] [their] claim[s] . . . by evidence satisfactory to the court.” § 1608(e). After gaining a judgment, however, plaintiffs proceeding under the terrorism exception “have often faced practical and legal difficul-

¹The FSIA “provides the sole basis for obtaining jurisdiction over a foreign state in the courts of this country” and renders a foreign government “presumptively immune from the jurisdiction of United States courts unless one of the Act’s express exceptions to sovereign immunity applies.” *OBG Personenverkehr AG v. Sachs*, 577 U. S. 27, 30–31 (2015) (internal quotation marks omitted); see 28 U. S. C. § 1330(a) (conferring jurisdiction over “any claim . . . with respect to which the foreign state is not entitled to immunity”); § 1604 (on “[i]mmunity of a foreign state from jurisdiction”).

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ties” at the enforcement stage. Brief for United States as *Amicus Curiae* 2. Subject to stated exceptions, the FSIA shields foreign-state property from execution. § 1609. When the terrorism exception was adopted, only foreign-state property located in the United States and “used for a commercial activity” was available for the satisfaction of judgments. § 1610(a)(7), (b)(3). Further limiting judgment-enforcement prospects, the FSIA shields from execution property “of a foreign central bank or monetary authority held for its own account.” § 1611(b)(1).

To lessen these enforcement difficulties, Congress enacted the Terrorism Risk Insurance Act of 2002 (TRIA), which authorizes execution of judgments obtained under the FSIA’s terrorism exception against “the blocked assets of [a] terrorist party (including the blocked assets of any agency or instrumentality of that terrorist party).” § 201(a), 116 Stat. 2337, note following 28 U. S. C. § 1610. A “blocked asset” is any asset seized by the Executive Branch pursuant to either the Trading with the Enemy Act (TWEA), 40 Stat. 411, 50 U. S. C. App. 1 *et seq.*, or the International Emergency Economic Powers Act (IEEPA), 91 Stat. 1626, 50 U. S. C. § 1701 *et seq.* See TRIA § 201(d)(2). Both measures, TWEA and IEEPA, authorize the President to freeze the assets of “foreign enemy state[s]” and their agencies and instrumentalities. Brief for United States as *Amicus Curiae* 25. These blocking regimes “put control of foreign assets in the hands of the President so that he may dispose of them in the manner that best furthers the United States’ foreign-relations and national-security interests.” *Ibid.* (internal quotation marks omitted).²

² Again expanding the availability of assets for postjudgment execution, Congress, in 2008, amended the FSIA to make available for execution the property (whether or not blocked) of a foreign state sponsor of terrorism, or its agency or instrumentality, to satisfy a judgment against that state. See § 1083 of the National Defense Authorization Act for Fiscal Year 2008, 122 Stat. 341, 28 U. S. C. § 1610(g). Section 1610(g) does not take prece-

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Invoking his authority under the IEEPA, the President, in February 2012, issued an Executive Order blocking “[a]ll property and interests in property of any Iranian financial institution, including the Central Bank of Iran, that are in the United States.” Exec. Order No. 13599, 3 CFR 215 (2012 Comp.). The availability of these assets for execution, however, was contested.³

To place beyond dispute the availability of some of the Executive Order No. 13599-blocked assets for satisfaction of judgments rendered in terrorism cases, Congress passed the statute at issue here: § 502 of the Iran Threat Reduction and Syria Human Rights Act of 2012, 126 Stat. 1258, 22 U. S. C. § 8772. Enacted as a freestanding measure, not as an amendment to the FSIA or the TRIA,⁴ § 8772 provides that, if a court makes specified findings, “a financial asset . . . shall be subject to execution . . . in order to satisfy any judgment to the extent of any compensatory damages awarded against Iran for damages for personal injury or death caused by” the acts of terrorism enumerated in the FSIA’s terrorism exception. § 8772(a)(1). Section 8772(b) defines as available for execution by holders of terrorism judgments against Iran “the financial assets that are identified in and the subject of proceedings in the United States District Court for the Southern District of New York in Peterson et al. v. Islamic Republic of Iran et al., Case No. 10 Civ. 4518 (BSJ) (GWG), that were restrained by restrain-

dence over “any other provision of law,” as the TRIA does. See TRIA § 201(a). Hence, the FSIA’s central-bank immunity provision, see *supra*, at 217, limits § 1610(g), but not the TRIA.

³As a defense to execution, Bank Markazi contended that the blocked assets were not assets “of” Bank Markazi. See TRIA § 201(a). Referring to state property law, Bank Markazi asserted that the assets were “of” a financial intermediary which held them in the United States on Bank Markazi’s behalf. See App. to Pet. for Cert. 96a–100a.

⁴Title 22 U. S. C. § 8772(a)(1) applies “notwithstanding any other provision of law, including any provision of law relating to sovereign immunity, and preempt[s] any inconsistent provision of State law.”

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ing notices and levies secured by the plaintiffs in those proceedings.”

Before allowing execution against an asset described in § 8772(b), a court must determine that the asset is:

“(A) held in the United States for a foreign securities intermediary doing business in the United States;

“(B) a blocked asset (whether or not subsequently unblocked) . . . ; and

“(C) equal in value to a financial asset of Iran, including an asset of the central bank or monetary authority of the Government of Iran” § 8772(a)(1).

In addition, the court in which execution is sought must determine “whether Iran holds equitable title to, or the beneficial interest in, the assets . . . and that no other person possesses a constitutionally protected interest in the assets . . . under the Fifth Amendment to the Constitution of the United States.” § 8772(a)(2).

B

Respondents are victims of Iran-sponsored acts of terrorism, their estate representatives, and surviving family members. See App. to Pet. for Cert. 52a–53a; Brief for Respondents 6. Numbering more than 1,000, respondents rank within 16 discrete groups, each of which brought a lawsuit against Iran pursuant to the FSIA’s terrorism exception. App. to Brief for Respondents 1a–2a. All of the suits were filed in the United States District Court for the District of Columbia.⁵ Upon finding a clear evidentiary basis for

⁵The 16 judgments include: *Wultz v. Islamic Republic of Iran*, 864 F. Supp. 2d 24 (DC 2012); *Murphy v. Islamic Republic of Iran*, 740 F. Supp. 2d 51 (DC 2010); *Valore v. Islamic Republic of Iran*, 700 F. Supp. 2d 52 (DC 2010) (granting judgment in consolidation of four actions at issue here: *Valore*, No. 1:03–cv–01959; *Bonk v. Islamic Republic of Iran*, No. 1:08–cv–01273; *Spencer v. Islamic Republic of Iran*, No. 1:06–cv–00750; and *Arnold v. Islamic Republic of Iran*, No. 1:06–cv–00516); *Estate of Brown v. Islamic Republic of Iran*, No. 1:08–cv–00531 (D DC, Feb. 1,